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February 24, 2025

COMMITTEE SUBSTITUTE
FOR

SENATE BILL NO. 1008

By: Murdock

An Act relating to water and water rights; amending 82 O.S. 2021, Section 1020.19, which relates to metering of wells; requiring all permit holders to utilize certain system for use of water; authorizing the Oklahoma Water Resources Board to implement certain allocation to encourage conservation after certain date; specifying requirements for participation; prohibiting excessive use; exempting certain wells from provisions; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 82 O.S. 2021, Section 1020.19, is amended to read as follows:

Section 1020.19. ~~Upon request of a majority of the landowners~~

~~residing within a basin or subbasin, the Board is authorized to~~

~~require that water wells be metered and that such meters as the~~

~~Board shall approve be utilized by the applicant and placed under~~

~~seal, subject to reading by the agents of the Board at any time.~~

~~The Board may also require that the applicant report the reading of~~

~~such meters at reasonable intervals.~~

1 A. The Oklahoma Water Resources Board shall require all permit
2 holders authorized to take and use groundwater to implement a system
3 of measuring groundwater usage from all wells associated with the
4 permit. The Board shall determine which measurement systems may be
5 utilized, which shall include, but not be limited to, pump and
6 irrigation monitoring telemetry devices capable of reporting usage.
7 Such measuring systems shall be in proper operating conditions at
8 all times when groundwater is being produced. Data from the
9 measuring system shall be utilized for the annual groundwater use
10 report.

11 B. To encourage groundwater conservation, beginning January 1,
12 2026, the Board shall provide a five-year flex allocation of
13 groundwater usage based off the previously determined allocated
14 annual use of the basin or subbasin. A five-year flex allocation
15 shall not require a new permit for existing permit holders. A five-
16 year flex allocation shall be available for:

17 1. Existing permit holders for groundwater use permits in
18 basins or subbasins, based upon the maximum annual yield
19 determination at the time of the original application;

20 2. New applicants for groundwater use permits in basins or
21 subbasins based upon the current maximum annual yield determination;
22 and

1 3. New and existing applicants and temporary permit holders for
2 groundwater use permits in basins or subbasins where the maximum
3 annual yield has yet to be determined.

4 C. An applicant for a five-year flex allocation shall be
5 required to:

6 1. Submit an annual usage report of the prior year's usage from
7 a Board-approved water measurement system; and

8 2. Pay the annual groundwater permit fee.

9 D. A five-year flex allocation shall allow the permit holder to
10 exceed the determined annual allocation in any year of the five-year
11 allocation; provided, that the applicant shall adhere to the
12 cumulative annually determined allocation of the basin or subbasin
13 over the five-year period. The permit holder shall not exceed the
14 permitted annual allocation by over two hundred percent (200%) in
15 any of the five years.

16 E. Nothing in this section shall apply to domestic wells.

17 SECTION 2. This act shall become effective November 1, 2025.

18 COMMITTEE REPORT BY: COMMITTEE ON AGRICULTURE AND WILDLIFE
19 February 24, 2025 - DO PASS AS AMENDED BY CS
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